

Ethics and Social Responsibility: Understanding Civil and Criminal Law in IT

Lecture No 02

Civil Law vs Criminal Law

Civil Law: Deals with disputes between individuals or organizations.

Criminal Law: Deals with offenses that harm society and are punishable by the state

Civil Law and IT

- **Contract Law:** Governs agreements between parties, including software development contracts and service agreements.
- **Intellectual Property Law:** Protects creations of the mind, including software code, copyrights, and patents.
- **Data Protection Law:** Regulates the collection, storage, and use of personal data.
- **Product Liability Law:** Holds manufacturers and sellers accountable for defective products that cause harm.

Case Study: Civil Law and IT

Example 01

- **Scenario:** A freelance web developer fails to deliver a promised website on time and within budget, causing financial losses for the client.
- **Possible Legal Issues:**
 - Breach of Contract:*** If a formal contract existed, the client might sue for compensation for damages caused by the delay.

Example 2

- **Scenario:** A social media platform experiences a data breach that exposes user information like names, locations, and messages.
- **Possible Legal Issues:**
 - Data Protection Law Violation:*** The company might be liable for failing to implement adequate security measures to protect user data.

Criminal Law and IT

- **Cybercrime Laws:** Address offenses committed online, including hacking, data theft, and online harassment.
- **Intellectual Property Law (Criminal Aspects):** Copyright infringement and software piracy can also be prosecuted as criminal offenses.
- **Computer Misuse Laws:** Prohibit unauthorized access to computer systems and data.

Case Study: Criminal Law and IT

Example 01

- **Scenario:** A disgruntled employee hacks into their former employer's database and steals confidential customer information.
- **Possible Criminal Charges:**
 - Hacking:*** Unauthorized access to a computer system.
 - Data Theft:*** Stealing sensitive data.

Case Study: Criminal Law and IT

Example 02

- **Scenario:** A group of students develop and distribute malware that infects computers and steals user passwords.
- **Possible Criminal Charges:**
 - Cybercrime:*** Creating and distributing malicious software.
 - Fraud:*** Stealing user passwords for unauthorized access.